

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

AMERICAN IRON & METAL COMPANY INC., *Complainant*

v.

PRIVA LOGISTICS INC., *Respondent*.

DOCKET NO. 25-13

Served: August 5, 2025

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

SCHEDULING ORDER

On August 5, 2025, the parties filed a joint status report and proposed discovery schedule. Dkt. 11. The discovery schedule proposed by the parties completes discovery on December 20, 2025, within 150 days of service of Respondent's answer on July 23, 2025, and so complies with Commission Rule 141(g). 46 C.F.R. § 502.141(g). The parties have also stated that they have scheduled a preliminary conference with CADRS on August 87, 2025. To make the discovery process more efficient, the parties are encouraged to agree to limitations on discovery and stipulations of facts. The parties are also encouraged to review the Initial Order for instructions related to confidential information. For example, parties may not mark entire depositions as confidential, so they should ask questions that may require confidential responses together, typically at the end of the deposition.

Prehearing Conference. Complainant has requested an oral hearing in Philadelphia. Compl. 6, Dkt. 1. Respondent requests an oral hearing at Commission headquarters in Washington, DC. Counterclaim ¶ XLI, Dkt. 8. Under normal circumstances, cases such as these are resolved following briefing and, pursuant to 46 C.F.R. § 502.62(a)(5), "[t]he presiding officer will determine whether an oral hearing is necessary." I have included tentative dates for the filing of prehearing statements and for holding a prehearing conference in the schedule below. 46 C.F.R. § 502.209. After reviewing the prehearing statements or holding the prehearing conference, if it appears that there are no issues of material fact that would make a hearing necessary, I will set a briefing schedule. Otherwise, the hearing date and location will be set at the prehearing conference. Counsel who will conduct the hearing must attend the prehearing conference, and must have authority to enter into stipulations, admissions, and agreements regarding all matters that the participants may reasonably anticipate may be discussed.

Joint Prehearing Statement, Objections to Exhibits, and Confidential Treatment. Prehearing statements must comply fully with 46 C.F.R. § 502.210. Counsel who will conduct the hearing must meet no later than the date set forth below for the purpose of discussing the topics set forth in 46 C.F.R. § 502.210(b) and to prepare, to the extent possible, a Joint

Prehearing Statement. If there are elements of the statement to which the parties do not agree, the parties should describe their respective positions in the jointly prepared document.

At this meeting, the parties must exchange all documentary exhibits they may offer at the hearing. The parties must also designate depositions, or portions of depositions, that they plan to offer into evidence in the Joint Prehearing Statement. See 46 C.F.R. § 502.149. Objections, if any, by a party to the exhibits submitted or depositions designated by any other party must be made at the time of submission of the Joint Prehearing Statement. A party raising an objection to an exhibit or deposition must attach a copy of the exhibit or portion of the deposition transcript to which the objection is made.

The rules governing Confidential Material set forth in the Initial Order, Dkt. 5, are applicable to hearing exhibits. Requests for confidential treatment of hearing exhibits must be made by motion in accordance with the Initial Order, and the motion must be submitted with the Joint Prehearing Statement. If any party seeks confidential treatment of anticipated testimony, the motion for confidential treatment must address that testimony as well. 46 C.F.R. §§ 502.5, 502.208.

The parties are hereby **ORDERED** to follow this schedule:

September 12, 2025	Service of Requests for Production and Fact Interrogatories
November 1, 2025	Complete Document Production
November 21, 2025	Complete Fact Depositions
November 21, 2025	Expert Discovery Phase Begins
December 20, 2025	Discovery Closed
January 5, 2026	Meeting to discuss Joint Prehearing Statement must be held by this date; hearing exhibits must be exchanged (see above)
January 26, 2026	Joint prehearing statement, objections to exhibits, and motions for confidential treatment are due (see above)
February 9, 2026	Prehearing conference to be held at 800 North Capitol Street, NW, Washington, DC at 10:30 AM

The parties are reminded that a “scheduling order ‘is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.’” *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, “[p]arties cannot control an agency’s docket or procedures through agreement among themselves.” *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

Motions will not automatically stay other deadlines in the proceeding. If a motion could impact other deadlines, that should be clearly addressed in the motion and any response. All

requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension. Pursuant to the Howard Coble Coast Guard and Maritime Transportation Act of 2014 and Commission Docket No. 15-06, attorney fees may be awarded to any prevailing party in a complaint proceeding. It is therefore in the best interest of the parties to proceed expeditiously.

Any filing submitted without page numbers, including on exhibits, may be rejected. Parties must also follow the instructions in the Initial Order, including the requirements for submitting confidential information. All filings “must be filed with the Secretary, Federal Maritime Commission.” 46 CFR 502.2(a). This filing requirement applies to both the confidential and public versions of filings. The Commission has waived paper filing requirements and permitted filings by email. Therefore, filings of confidential versions of documents, as well as the public version, should be sent by email to secretary@fmc.gov with a courtesy copy to judges@fmc.gov. Confidential filings should be clearly marked on the subject line, in the email, and on the document itself. Parties may be required to refile any documents that do not follow the requirements above or in the Initial Order.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to email the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: judges@fmc.gov, with opposing counsel copied. Word-processing versions should not be submitted to the Office of the Secretary.

ALEX
CHINTELLA

Digitally signed by
ALEX CHINTELLA
Date: 2025.08.05
17:25:08 -04'00'

Alex M. Chintella
Administrative Law Judge